



PHASE 03 · LEGAL REVIEW (RESET)

Six-Insurer Legal Competitor Review

A fresh, granular legal review — benchmarked by the abuse/Tysers issue the prior review missed

Wordings reviewed

- Tokio Marine HCC — Media & Music Combined
- Tysers “Focus” Combined ‘All Risks’ Media policy
- Media & Entertainment by Yutree
- Liberty Entertainment Combined Policy
- Allianz Entertainment ‘Complete’ Policy
- AXA XL Media & Entertainment Combined Corporate (Crisis Management & Special Risks)
- Entertainment Elite Policy (v3.2)

Reviewed by LEGAL EFFECT and coverage function, not by heading. Where a clause could not be verified it is marked '? requires review' rather than assumed.

Dedicated Abuse / Safeguarding / Molestation section (TMHCC vs Tysers and all competitors).

No cover invented; no exclusion or restriction softened.

✓ Covered ● Partial / conditional / sub-limit ✗ Not covered / not identified ? Unclear – requires review

Quality benchmark: The prior comparison missed that TMHCC's Public Liability EXCLUDES abuse while Tysers (the closest media competitor) appears NOT to exclude abuse. This review treats that level of granularity as the standard for every coverage/legal area below.

A. Abuse / Safeguarding / Molestation — TMHCC vs Tysers and other competitors

Finding: TMHCC's Public Liability expressly EXCLUDES abuse. Of the six competitors, only Yutree and AXA XL also expressly exclude abuse. Tysers, Liberty, Allianz and Entertainment Elite contain NO express abuse exclusion that could be located — i.e. they are silent, and abuse-related bodily-injury claims are not specifically carved out. On this peril TMHCC is therefore NARROWER than Tysers/Liberty/Allianz/Entertainment Elite and broadly comparable to Yutree/AXA XL.

Insurer	Abuse position	Wording basis	Legal effect
TMHCC	EXCLUDED	Express Public Liability 'Abuse' exclusion: 'the mental or physical intentional or neglectful mistreatment of a person which results in Bodily Injury including any act which amounts to an offence under the Sexual Offences Act 2003.'	Abuse-related bodily-injury claims are NOT covered under Public Liability.
Tysers (Zurich)	NOT LOCATED (silent)	No express abuse / molestation exclusion located in the liability sections. 'Bullying and harassment' appears ONLY as a topic in the Employee-Assistance counselling helpline (Sub-Section 9, Zurich Assistance) — NOT a liability exclusion.	Abuse-related BI is NOT specifically carved out → potentially within Public/Products Liability cover, subject to deliberate-acts and other general exclusions. POTENTIALLY BROADER than TMHCC. (This is the issue the prior review missed.) Confirm against the full schedule/endorsements.
Yutree (AXA)	EXCLUDED (broad)	Broad defined term 'Abuse' (abuse/threat/cruelty; exploitation; molestation, intimate or inappropriate sexual contact; pornography) PLUS an express 'Abuse exclusion': 'We will not cover claims directly or indirectly caused by or arising from any actual or alleged abuse.'	Abuse NOT covered; arguably a WIDER exclusion than TMHCC ('directly or indirectly... actual or alleged').
Liberty	NOT LOCATED (silent)	No express abuse exclusion located (property/BI/liability package).	Silent → abuse-related BI not specifically excluded; potentially broader than TMHCC, subject to general exclusions. Confirm.
Allianz	NOT LOCATED (silent)	No express abuse exclusion located ('animal cruelty' appears only in a data-privacy context).	Silent → potentially broader than TMHCC, subject to general exclusions. Confirm.
AXA XL	EXCLUDED (very broad)	Liability Exclusion 7.8.1 'Abuse': 'any act that results in the maltreatment of a person... physical, sexual, verbal, psychological or emotional or financial nature.'	Abuse NOT covered; very broad exclusion (wider than TMHCC).
Entertainment Elite	NOT LOCATED (silent)	No abuse-LIABILITY exclusion located ('misuse, abuse or contamination' refers to physical property contamination only).	Silent on personal-abuse liability → potentially broader than TMHCC, subject to general exclusions. Confirm.

Is TMHCC narrower? — yes, against four of the six

TMHCC is narrower than Tysers, Liberty, Allianz and Entertainment Elite (no express abuse exclusion) and comparable to Yutree and AXA XL (both exclude). IMPORTANT legal caveat: a competitor's silence does NOT confirm cover — abuse claims may still be defeated by deliberate/criminal-acts and other general exclusions. This must be confirmed legally rather than asserted.

Recommended action — optional, sub-limited abuse write-back (Schedule-operative)

Recommendation: Retain the abuse exclusion as the DEFAULT (abuse is a high-severity, long-tail, reputational and systemic exposure, and the express exclusion is a defensible underwriting position). For client segments where abuse exposure is genuinely relevant (festivals/youth/community events), OFFER an OPTIONAL, sub-limited Abuse / Molestation write-back, Schedule-operative, with strict safeguarding conditions precedent (documented safeguarding policy; DBS/PVG checks; supervision/'two-adult' rule), an aggregate sub-limit, a claims-made trigger and an SIR. This converts a visible gap (vs Tysers) into a rated option without taking the exposure by default. Proposed wording is in the Phase 05 gap-fill strategy.

Underwriting risk	Claims risk	Priority	Sign-off required
HIGH — severe, long-tail, reputational; reinsurance-sensitive.	HIGH severity / low frequency — large awards; coverage litigation.	High (for client segments with real exposure)	YES — claims + legal + reinsurance; specialist abuse market may be the right home for the core exposure.

B. Liability exclusions (Public / Products / Employers') — by legal effect

Exclusion tables below use ✓ = exclusion present / applies, ✗ = no such exclusion located, ? = unclear, ◐ = partial/with write-back. An abuse-exclusion row has been added (the prior review's omission).

B.1 General & liability exclusions

Coverage / legal feature	TMHCC	Tysers	Yutree	Liberty	Allianz	AXA XL	Ent.Elite	Legal significance / note
Abuse / molestation exclusion (PL) applies	✓	✗	✓	✗	✗	✓	✗	TMHCC, Yutree and AXA XL EXCLUDE abuse; Tysers, Liberty, Allianz and Entertainment Elite have NO express abuse exclusion located (silent). See Section A.
War / nuclear / radioactive contamination	✓	✓	✓	✓	✓	✓	✓	Standard market exclusion present in all six wordings (AXA XL 3.3/3.5, incl. weapons of mass destruction). Broadly equivalent.
Terrorism (property/BI)	◐	✓	◐	◐	◐	✓	◐	TMHCC, Yutree, Liberty, Allianz write terrorism back via a dedicated section. Tysers and AXA XL (3.4) EXCLUDE terrorism outright with no buy-back.
Pollution / contamination	✓	✓	✓	✓	✓	✓	✓	Excluded by all with the usual sudden/accidental & defined-peril write-backs (AXA XL: MD exclusion (p) and Liability pollution exclusion). Equivalent.
Asbestos	✓	◐	✓	✓	✓	✓	✓	Tysers PI has a professional-duty WRITE-BACK (cover where liability arises from negligent advice, GBP 1m, ex-BI). TMHCC, Yutree and AXA XL (3.1, ex-EL) exclude asbestos more strictly.
Cyber / electronic risk (first-party damage & BI)	✓	✓	✓	✓	✓	✓	✓	All exclude cyber-caused damage/BI. KEY DIFFERENCE: TMHCC dis-applies its cyber/date exclusion to Sections 12–15; Tysers dis-applies Electronic Risk to S8 PI. AXA XL's cyber exclusion (3.7) is broad with only a DP Act 2018 carve-out; Yutree's PI carries a broad cyber/data exclusion.
Date recognition / data-processing failure	✓	✓	✓	✓	✓	◐	✓	Standard 'millennium/date'-style exclusion in the property packages. AXA XL has no separate date clause — subsumed within its broad cyber/electronic-data exclusion. Equivalent in substance.
Communicable disease / pandemic	✓	✗	?	?	?	✓	?	TMHCC and AXA XL (3.8) both carry a BROAD communicable-disease exclusion (applies notwithstanding all other terms). Not identified in Tysers; Yutree/Liberty/Allianz require confirmation. TMHCC is well-protected here (a deliberate restriction).
Sanctions / trade restrictions	✓	✓	✓	✓	✓	✓	✓	All carry a sanctions clause (AXA XL 4.4). TMHCC has both a Trading-Sanctions and an International-Sanctions clause. Equivalent.
Northern Ireland (civil commotion) / sonic bangs	?	✓	?	✓	✓	?	?	Standard UK property-package carve-outs present in Tysers/Liberty/Allianz; TMHCC and AXA XL treatment within property sections requires confirmation.

B.2 Additional liability-exclusion notes (Public / Products / Employers')

- Employers' Liability: statutory EL provided by all six (typically GBP 10m). EL exclusions are broadly equivalent; AXA XL = sub-section 7C. TMHCC's abuse, asbestos and communicable-disease exclusions are framed ex-EL where required by statute.
- Bodily injury / property damage carve-out (PI): all three media wordings exclude BI/PD from PI unless arising from negligent publication/advice — equivalent.
- Contractual / assumed liability: excluded by all liability/PI sections with the standard 'would have attached anyway' write-back — equivalent.
- Deliberate / reckless / dishonest acts: excluded by all, with an employee-dishonesty write-back in the media wordings — equivalent.

- Care, custody or control; defective workmanship; medical malpractice; advice/professional negligence: TMHCC PL carries the standard market carve-outs (AXA XL mirrors several at 7.8.x).

C. Media Liability / Professional Indemnity / E&O — deep legal review (Section 12)

C.1 Media / PI feature matrix

Liberty, Allianz, AXA XL and Entertainment Elite provide NO media/PI/E&O cover.

Coverage / legal feature	TMHCC	Tysers	Yutree	Liberty	Allianz	AXA XL	Ent.Elite	Legal significance / note
Defamation / libel / slander / malicious falsehood	✓	✓	✓	✗	✗	✗	✗	TMHCC and Yutree cover 'unintentional' defamation; Tysers covers unless the statement was known/ought-to-have-been-known to be defamatory. Broadly equivalent. Liberty/Allianz/AXA XL: no PI.
IP infringement – copyright / trademark / passing off	✓	✓	✓	✗	✗	✗	✗	All three media wordings cover unintentional IP infringement incl. passing-off.
Patent infringement	✗	✓	✗	✗	✗	✗	✗	Tysers (clause 8.9) expressly includes PATENT infringement within IP cover. TMHCC and Yutree EXCLUDE patents. TMHCC is sensibly more restrictive (patents are hard to underwrite).
Breach of confidence / invasion of privacy	✓	✓	✓	✗	✗	✗	✗	Covered by all three media wordings (TMHCC/Yutree on an 'unintentional' basis; Tysers clauses 8.11/8.12).
Breach of professional duty / negligence / E&O	✓	✓	✓	✗	✗	✗	✗	Core E&O. Covered by all three media wordings.
Dishonesty / fraud of employees (write-back)	✓	⦿	✓	✗	✗	✗	✗	TMHCC (Insuring Clause 1.I) and Yutree (Dishonesty & fraud cover) grant an express write-back for employee dishonesty; Tysers via its Criminal/Malicious Acts exclusion with an employee carve-out.
Defence costs payable IN ADDITION to the limit	✓	✓	✓	✗	✗	✗	✗	All three pay defence costs in addition, with proportionate reduction once the limit is exceeded.
Territorial / jurisdiction scope	⦿	✓	⦿	✗	✗	✗	✗	Tysers PI is WORLDWIDE. TMHCC limits cover to the Schedule Geographical Limits and EXCLUDES actions brought outside the stated Jurisdiction (default worldwide ex-US/Canada). Yutree restricts US/Canada. Competitor (Tysers) broader.
Data-protection defence costs	✓	⦿	✗	✗	✗	⦿	✗	TMHCC grants Data Protection Defence Costs (GBP 250k). Yutree EXCLUDES breach of data-protection law in PI. AXA XL provides only a DP Act 2018 defence-costs extension within Public Liability (not a media/PI grant). TMHCC clearer/broader.
Criminal / statutory prosecution defence costs	⦿	✓	✓	✗	✗	✗	✗	Tysers pays statutory defence costs (Bribery/Corporate Manslaughter/H&S/CDM — GBP 1m). Yutree pays Criminal Prosecution Defence Costs (GBP 250k). TMHCC S12 grants only Data-Protection defence costs (broader criminal cover sits in S13/S14).
Reputation management / crisis-PR costs	✓	✗	✓	✗	✗	✗	✗	TMHCC and Yutree both grant Reputation Management costs (GBP 250k). Not identified in Tysers S8.
Withdrawal / alteration of content (incl. ASA/OFCOM)	✓	✗	✓	✗	✗	✗	✗	TMHCC and Yutree both grant Withdrawal of Content (GBP 250k) including ASA/OFCOM complaints. Not identified in Tysers.
Rectification / mitigation costs	✓	✓	✓	✗	✗	✗	✗	All three pay rectification/mitigation costs that avert a larger claim (TMHCC Rectification; Tysers 8.14; Yutree Mitigation).
Costs to PROSECUTE	✓	✗	✓	✗	✗	✗	✗	TMHCC (GBP 25k) and Yutree (IP-rights prosecution) fund pursuit of the insured's own IP, subject to a

Phase 03 — granular legal review by legal effect (not headings). Six competitors. Compared against the final TMHCC wording. Subject to TMHCC legal/underwriting sign-off.

infringement of the insured's own IP								supporting legal opinion. Not identified in Tysers.
Distributors & purchasers extension	✗	✓	✗	✗	✗	✗	✗	Tysers (clause 8.7) extends indemnity to purchasers/co-producers/distributors of the insured's media material (up to 5x the limit). Not provided by TMHCC or Yutree.
Journalistic source-protection / challenge to subpoena	✗	✓	✗	✗	✗	✗	✗	Tysers (clause 8.13) funds legal costs to challenge a subpoena requiring disclosure of a source. Not provided by TMHCC or Yutree — broker-sensitive for editorial/news clients.
Representation costs at investigations / inquiries	🕒	✓	🕒	✗	✗	✗	✗	Tysers (8.15, GBP 25k) covers representation at official examinations/inquiries. TMHCC provides this only via Data-Protection defence; Yutree via Criminal-Prosecution defence.
Loss of documents	✓	✓	✓	✗	✗	✗	✗	Covered by all three media wordings (TMHCC Insuring Clause; Tysers 8.10 GBP 1m; Yutree Loss of Documents, GBP 500 excess).
Unintentional virus transmission	✓	✓	🕒	✗	✗	✗	✗	TMHCC (GBP 500k sub-limit, targeted-virus write-back) and Tysers (8.16, GBP 250k) cover unintentional virus transmission. Yutree treats virus within its broader cyber exclusion.
Mergers & acquisitions / subsidiary auto-acquisition	✓	?	✓	✗	✗	✗	✗	TMHCC and Yutree both auto-include newly created/acquired entities below a 20% turnover threshold, with notification above. Tysers position requires review.
Pollution write-back (negligent advice)	✗	✗	🕒	✗	✗	✗	✗	Yutree grants a limited pollution write-back where the cause is a specific act/error/omission of the insured. TMHCC and Tysers exclude pollution from PI.
Cyber/data general exclusion impact on PI cover	✓	✓	✗	✗	✗	✗	✗	TMHCC's general cyber/date exclusion applies to Sections 1–11 ONLY, leaving S12 with bespoke virus/unauthorised-access cover; Tysers' Electronic-Risk exclusion is dis-applied to S8. Yutree's PI carries a BROAD cyber & data-protection exclusion.
Senior-counsel (KC) dispute-resolution clause	🕒	?	✓	✗	✗	✗	✗	Yutree includes a clear King's Counsel arbitration clause for defence/settlement disputes. TMHCC relies on a general mediation/dispute condition; Tysers requires review.

C.2 PI-specific exclusions

✓ = exclusion applies; na = no PI section. Covers patents, USA/Canada, insolvency, prior-known, cyber-within-PI, pollution.

Coverage / legal feature	TMHCC	Tysers	Yutree	Liberty	Allianz	AXA XL	Ent.Elite	Legal significance / note
Contractual / assumed liability	✓	✓	✓	—	—	—	—	Excluded by all three media wordings, with the standard write-back for liability that would exist absent the contract. Equivalent.
Deliberate / reckless / dishonest acts (with employee write-back)	✓	✓	✓	—	—	—	—	All exclude deliberate/dishonest acts of the insured but write back dishonest acts of employees. Equivalent.
Bodily injury / property damage	✓	✓	✓	—	—	—	—	Excluded unless arising from negligent publication/advice. Equivalent.
Fines / penalties / punitive damages	🕒	?	?	—	—	—	—	TMHCC excludes non-compensatory damages BUT writes back libel/slander/defamation awards and punitive damages where the law permits — a favourable carve-back. (Note: AXA XL's general policy excludes punitive/exemplary damages and fines ABSOLUTELY, with no write-back — TMHCC is clearer/broader.)

TMHCC Media & Music Combined — Six-Insurer Legal Review (Reset)

Prior known claims / circumstances	✓	✓	✓	—	—	—	—	Excluded by all three (claims-made hygiene). Equivalent.
Insolvency / financial failure of the insured	✓	?	?	—	—	—	—	TMHCC expressly excludes claims arising from its own insolvency/liquidation. Competitor positions require review.
USA / Canada jurisdiction	✓	✗	🕒	—	—	—	—	TMHCC excludes actions brought / governed outside the stated Jurisdiction (default ex-US/Canada). Tysers PI is WORLDWIDE. Yutree restricts US/Canada exposure. Competitor (Tysers) broader.
Patent infringement	✓	✗	✓	—	—	—	—	TMHCC and Yutree exclude patents; Tysers covers patent infringement. TMHCC sensibly more restrictive.
Cyber act / breach of data-protection law (within PI)	✗	✗	✓	—	—	—	—	Yutree's PI carries a broad cyber-act & data-protection-law exclusion. TMHCC instead grants bespoke cover (virus, unauthorised access, DP defence costs) — TMHCC broader/clearer.
Pollution / seepage	✓	✓	🕒	—	—	—	—	TMHCC and Tysers exclude pollution from PI; Yutree grants a limited write-back for the insured's own negligent act/error/omission.

D. Section / cover availability across the six wordings

D.1 Section-level availability

Coverage / legal feature	TMHCC	Tysers	Yutree	Liberty	Allianz	AXA XL	Ent.Elite	Legal significance / note
S1 · Business “All Risks” (premises buildings & contents)	✓	✓	✓	✓	✓	✓	✓	All six offer premises/contents material damage on an all-risks basis. Allianz, Liberty and AXA XL are property-led packages with granular MD specifications; TMHCC consolidates IT/premises cover here.
S2 · Property & Equipment “All Risks” (production/entertainment equipment)	✓	✓	✓	⦿	✓	✓	✓	Owned and hired-in production/entertainment equipment. Tysers (Production Property), Yutree (Production property), Allianz (Specified All Risks), AXA XL (‘Technical Equipment’ within Material Damage). Liberty covers entertainment equipment via specified Schedule items.
S3 · Business Interruption “All Risks”	✓	✓	✓	✓	✓	✓	✓	All offer BI. Allianz is structurally broader (splits Increased Cost of Working and Book Debts into discrete sections). AXA XL has a full BI section (incl. Rent Receivable / Turnover). Confirm TMHCC S3 expressly covers ICOW/AICOW and book debts.
S4 · Terrorism	✓	✗	✓	✓	✓	✗	✓	TMHCC, Yutree, Liberty and Allianz provide terrorism cover. Tysers EXCLUDES terrorism (no buy-back). AXA XL EXCLUDES terrorism absolutely (Policy Exclusion 3.4, ex-Employers’ Liability) — client would need standalone Pool Re.
S5 · Employers’ Liability	✓	✓	✓	✓	✓	✓	✓	Statutory EL provided by all six (typically GBP 10m). Broadly equivalent. AXA XL = sub-section 7C.
S6 · Public Liability	✓	✓	✓	✓	✓	✓	✓	Provided by all. Competitors combine Public & Products; TMHCC splits Public (S6) and Products (S7). AXA XL = sub-section 7A.
S7 · Products Liability	✓	✓	✓	✓	✓	✓	✓	Provided by all (combined with Public in the competitor wordings). AXA XL = sub-section 7B.
S8 · Money	✓	✓	✓	✓	✓	⦿	✓	Money cover provided by all. AXA XL provides Money as a sub-limited ‘Money’ specification WITHIN the Material Damage section (schedule-driven) rather than a standalone section.
S9 · Goods in Transit	✓	✗	✓	✗	✓	✗	✗	TMHCC, Yutree (GIT section) and Allianz (Own Goods in Transit) provide GIT. Tysers, Liberty and AXA XL do NOT have a dedicated GIT section.
S10 · Loss of Licence	✓	✗	✗	✗	✗	✗	✗	UNIQUE to TMHCC across all six competitors. Premises-licence loss cover under the Licensing Act 2003 — highly relevant for venues/festivals.
S11 · Production Indemnity “All Risks”	✓	✓	✓	✗	✗	✗	✗	TMHCC, Tysers (Multimedia & Producers Indemnity) and Yutree (Production Indemnity) cover production costs / cast / negatives. Liberty, Allianz and AXA XL do NOT offer production indemnity.
S12 · Media Liability / Professional Indemnity (E&O)	✓	✓	✓	✗	✗	✗	✗	The heart of a media wording. TMHCC (S12), Tysers (PI/E&O) and Yutree (PI-Media + PI-Events) provide it. Liberty, Allianz and AXA XL provide NO media/PI/E&O cover — despite AXA XL’s ‘Media & Entertainment’ branding.
S13 · Commercial Legal Expenses	✓	✗	✗	✗	✗	✗	✗	UNIQUE to TMHCC (ARAG-style legal expenses). No competitor wording includes a legal-expenses section.
S14 · Management Liability (D&O / EPL etc.)	✓	✗	✗	✗	✗	✗	✗	UNIQUE to TMHCC. No competitor wording includes management-liability cover.
S15 · Cyber Liability	✓	✗	⦿	✗	✗	✗	✗	UNIQUE — TMHCC ‘CyberGuard’ is a genuine standalone cyber policy. Yutree offers Computer

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TMHCC Media & Music Combined — Six-Insurer Legal Review (Reset)



(standalone)								Breakdown only. AXA XL has NO cyber section and a broad cyber EXCLUSION (only a Data Protection Act 2018 carve-out within Public Liability). Others: none.
(+) Personal Accident & Business Travel	X	✓	●	X	?	X	●	GAP for TMHCC: no standalone PA/business-travel section. Tysers (PA & Business Travel) is extensive; Yutree covers PA assault. Allianz references a 'Personal Accident' section in its exclusions (not in the cover list – review). AXA XL has NO personal-accident cover.

E. Conditions, conditions precedent, warranties & claims obligations

Condition / obligation	TMHCC	Tysers	Yutree	Liberty	Allianz	AXA XL	Ent.Elite
Claim notification	Express CONDITION PRECEDENT to liability — notify as soon as practicable (S1–11); S13 within 28 days; S12 claims-made notification during the period. Among the most protective drafting.	Notification under Special Condition 1; S8 PI is claims-made.	Claims-made; defined notification conditions for claims and claim circumstances.	Forward every claim document immediately on receipt.	Forward claim/notify per claims condition; potential proportionate remedy.	Written notice to Insurer per Policy Conditions; claims co-operation conditions.	Written notice to the Insurer as soon as reasonably practicable per the General/Claims Conditions; claim documents forwarded.
Basis of cover (PI/Media)	S12 Media Liability is claims-made with Retroactive Date; defence-costs in addition.	S8 PI/E&O claims-made; defence costs in addition; Excess does not apply to defence costs.	PI-Media claims-made; retroactive date; defence costs in addition.	n/a — no PI/media section.	n/a — no PI/media section.	n/a — no PI/media section.	n/a — no PI/media section.
Reasonable precautions / cyber-security	S12 imposes detailed computer-security conditions (firewall, AV, password change/60 days, encryption, logging, back-ups) and 'reasonable steps to avoid loss'.	Loss-of-documents condition requires back-ups at least every 7 days off-site.	Reasonable-precautions and security expectations apply.	General 'your duties' / reasonable precautions section.	Reasonable-precautions and maintenance conditions.	Reasonable-precautions / maintenance and duty-of-care conditions.	Reasonable-precautions and risk-improvement conditions; specific Money security, carryings and key conditions.
Change of control	S12 cover ceases on a change of control unless notified and agreed by endorsement.	Requires review.	Addressed via subsidiary creation/acquisition cover.	n/a (no PI).	n/a (no PI).	n/a (no PI).	n/a (no PI).
Premium payment	S12 premium payment clause — 60 days, with 15-day cancellation notice.	Per policy/General Conditions.	Premium-adjustment condition with cancellation rights.	Standard cancellation section.	Standard cancellation provisions.	Standard premium / cancellation provisions (Policy Conditions).	Premium-instalment and cancellation provisions.
Fair presentation (Insurance Act 2015)	Duty of fair presentation applies (UK).	Duty of fair presentation; Zurich data terms.	Express duty of fair presentation.	'Your duties' — fair presentation.	Fair-presentation conditions.	Insurer relies on information provided; fair-presentation basis.	Duty of fair presentation.
Defence / dispute resolution	Insurer consent required (CP); general mediation/dispute condition (England & Wales).	Insurer controls defence; consent to settle.	Clear King's Counsel arbitration clause for defence/settlement disputes — strong drafting.	Insurer conduct-of-claims rights.	Insurer conduct-of-claims rights.	Insurer conduct-of-claims rights.	Insurer conduct-of-claims rights.

- Claim notification: TMHCC S1–11 is an ordinary obligation ('as soon as practicable'); S12–S15 notification operates as a CONDITION PRECEDENT. Among the most clearly-drafted notification architectures in the peer group.

TMHCC Media & Music Combined — Six-Insurer Legal Review (Reset)

- Conditions precedent / warranties: TMHCC uses condition-precedent drafting for security, storage, risk-improvement and section-level notification; competitors rely on ordinary conditions with proportionate remedies (Insurance Act 2015).
- Theft / security / proof of ownership: TMHCC adds a Proof of Ownership and Value claims condition (S1-11); Tysers and Entertainment Elite carry detailed Money security/carrying/key conditions — broadly comparable.
- Breakdown: Yutree offers a dedicated Computer Breakdown section; TMHCC consolidates IT/computer breakdown within S1/S2 — confirm it is explicit (presentational, not a true gap).

F. Key limits & sub-limits (Media / PI)

Sub-limit	TMHCC	Tysers	Yutree	Liberty	Allianz	AXA XL	Ent.Elite
Primary limit of indemnity	Per Schedule	Per Schedule	Per Schedule	n/a	n/a	n/a	n/a
Virus transmission	GBP 500,000	GBP 250,000	Within cyber excl.	n/a	n/a	n/a	n/a
Data-protection defence costs	GBP 250,000	—	Excluded	n/a	n/a	PL: DP Act 2018 ext.	n/a
Criminal / statutory defence	— (DP only)	GBP 1,000,000	GBP 250,000	n/a	n/a	n/a	n/a
Reputation management	GBP 250,000	—	GBP 250,000	n/a	n/a	n/a	n/a
Withdrawal of content	GBP 250,000	—	GBP 250,000	n/a	n/a	n/a	n/a
Pursue insured's own IP	GBP 25,000	—	Limit	n/a	n/a	n/a	n/a
Loss of documents	Per Schedule	GBP 1,000,000	Limit (GBP 500 xs)	n/a	n/a	n/a	n/a
Representation costs	DP only	GBP 25,000	Within crim. defence	n/a	n/a	n/a	n/a
Court attendance (per day)	GBP 500 / 250	GBP 500 / 250 (25k agg)	Review	n/a	n/a	n/a	n/a
Distributors & purchasers	—	5x limit	—	n/a	n/a	n/a	n/a

Honest position: TMHCC meets or exceeds every evidenced competitor numeric sub-limit (e.g. Virus GBP 500k > Tysers GBP 250k; Reputation/Withdrawal GBP 250k = Yutree). Gaps are about NEW heads (representation, distributors, source-protection), not lower numbers.

G. Optional extensions & exclusion write-backs

Area	Competitor	Competitor write-back / position	TMHCC position	Recommended action	Priority
Asbestos (PI)	Tysers	Professional-duty write-back (GBP 1m, ex-BI)	TMHCC excludes asbestos in PI	Consider narrow negligent-advice write-back (ex-BI, ex-contamination)	Medium
Pollution (PI)	Yutree	Write-back for insured's own negligent act/error/omission	TMHCC excludes pollution in PI	Consider narrow negligent-advice write-back	Medium
USA/Canada jurisdiction (PI)	Tysers	No jurisdiction exclusion (worldwide)	TMHCC excludes actions outside Jurisdiction (default ex-US/Canada)	Offer rated worldwide/US-Canada option; keep default	High
Patent infringement (PI)	Tysers	Patents covered within IP	TMHCC excludes patents	At most a limited defence-costs write-back; otherwise leave excluded	Low
Cyber/data exclusion vs PI	(TMHCC favourable)	Yutree strips cyber-related PI; AXA XL blanket cyber exclusion	TMHCC dis-applies cyber/date exclusion to S12-15	No change — retain as a TMHCC strength	n/a
Fines/penalties (PI)	(TMHCC favourable)	TMHCC writes back defamation awards & permitted punitive; AXA XL excludes absolutely	TMHCC already favourable	No change — retain	n/a

H. Competitor-by-competitor legal profile

Tysers “Focus” Combined ‘All Risks’ Media (capacity: Zurich Insurance plc)

9 sections: Production Property, Property Damage, BI, Money, Production (Multimedia & Producers Indemnity), EL, Public & Products, Professional Indemnity/E&O, Personal Accident & Business Travel.

Strengths vs TMHCC

- PI/E&O (S8) is WORLDWIDE and notably broad — includes PATENT infringement, statutory defence costs (Bribery/Corporate Manslaughter/H&S/CDM, GBP 1m), Distributors & Purchasers extension (5x limit), journalistic source-protection costs, and representation costs (GBP 25k).
- Extensive standalone Personal Accident & Business Travel section (S9).
- Loss of documents sub-limit GBP 1m.

Gaps / restrictions

- No terrorism cover (excluded outright).
- No dedicated Goods in Transit section (Money only).
- No Loss of Licence, Legal Expenses, Management Liability or standalone Cyber.
- No Reputation-Management or Withdrawal-of-Content extension identified in PI.

Media & Entertainment by Yutree (capacity: AXA Insurance UK plc)

12 cover sections incl. Property, Production Property, Computer Breakdown, BI, Terrorism, EL, Public & Products, Money & PA assault, Goods in Transit, Production Indemnity, PI-Media and PI-Events.

Strengths vs TMHCC

- Two PI sections (Media; and Events & Installations) — useful where the client runs live events.
- Strong PI extensions: Reputation Management (GBP 250k), Withdrawal of Content (GBP 250k), Criminal Prosecution Defence (GBP 250k), Mitigation, limited Pollution write-back, and a clear King’s Counsel dispute-resolution clause.
- Standalone Computer Breakdown section; Goods in Transit section.

Gaps / restrictions

- PI carries a BROAD cyber & data-protection-law exclusion (strips cyber-related PI and DP defence).
- Excludes patents.
- No Loss of Licence, Legal Expenses, Management Liability or standalone Cyber-liability section.

Liberty Entertainment Combined Policy

6 cover sections: Material Damage, Business Interruption, Terrorism, Money, Employer’s Liability, Public & Products Liability.

Strengths vs TMHCC

- Property-led wording with detailed Material-Damage extensions (removal to private home, capital additions, professional fees).
- Clear, well-structured general exclusions/conditions.

Gaps / restrictions

- NO Media Liability / PI / E&O cover — not an errors-&-omissions wording.
- No Production Indemnity, Goods in Transit, Loss of Licence, Legal Expenses, Management Liability, Cyber or Personal Accident.

Allianz Entertainment 'Complete' Policy

8 cover sections (+Terrorism): Property Damage, BI, Increased Cost of Working, Book Debts, Money, Own Goods in Transit, Specified All Risks, EL, Public & Products.

Strengths vs TMHCC

- Granular BI suite — Increased Cost of Working and Book Debts as discrete sections.
- Mature property-package drafting (Specified All Risks, GIT).

Gaps / restrictions

- NO Media Liability / PI / E&O cover.
- No Production Indemnity, Loss of Licence, Legal Expenses, Management Liability or standalone Cyber.
- Personal Accident referenced in exclusions but not in the provided cover list (requires review).

AXA XL — Media & Entertainment Combined Corporate (XL Catlin Insurance Company UK Ltd; 'Crisis Management & Special Risks', June 2021)

3 operative sections only: Material Damage (Buildings/Contents, Machinery/Plant/Equipment, 'Technical Equipment' and a Money specification), Business Interruption (incl. Rent Receivable/Turnover), and Liability (7A Public, 7B Product, 7C Employers').

Strengths vs TMHCC

- Clean, modern 'single contract' combined drafting; Material Damage covers Technical Equipment used in the Business and includes a Money specification.
- Public Liability includes a Data Protection Act 2018 defence-costs extension (a deliberate carve-out from the broad cyber exclusion).

Gaps / restrictions

- NO Media Liability / PI / E&O, Production Indemnity, Cyber section, Legal Expenses, Management Liability, Loss of Licence, Goods in Transit or Personal Accident — despite the 'Media & Entertainment' title.
- Terrorism EXCLUDED absolutely (Policy Exclusion 3.4, ex-EL) — no buy-back.
- Punitive/exemplary damages and fines EXCLUDED absolutely (3.2) — no defamation write-back.
- Broad cyber / electronic-data exclusion across all sections (only a DP Act 2018 carve-out within Public Liability).

Entertainment Elite Policy (v3.2)

8 sections: Property Damage 'All Risks' (incl. defined Entertainment Equipment), Business Interruption (Revenue; Additional Cost of Working), Money, Employers' Liability, Public & Products Liability and Terrorism.

Strengths vs TMHCC

- Detailed, Schedule/Item-driven Money Section — theft of/from safes, strongrooms, bags and containers; assault cover with Accident (death/disablement) and emotional-stress counselling benefits; and employee dishonesty up to GBP 25,000 (aggregate).
- Granular Business Interruption suite (Revenue plus Additional Cost of Working).
- Defines 'Entertainment Equipment' and addresses property used at conferences, events, festivals and product launches.

Gaps / restrictions

- NO Media Liability / PI / E&O, Production Indemnity, Cyber, Legal Expenses, Management Liability, Loss of Licence or Goods in Transit section.
- Carries Computer-Misuse and data/computer-failure exclusions in the Money Section.

I. Issues the prior review missed or under-emphasised

Issue	Status	Detail
Abuse / molestation exclusion asymmetry	HEADLINE MISS	TMHCC PL EXCLUDES abuse; Tysers, Liberty, Allianz and Entertainment Elite contain NO express abuse exclusion (silent); only Yutree and AXA XL also exclude. Tysers — the closest media comparator — does not carve out abuse, so it appears broader on this peril. Not captured in the prior comparison.
Silence ≠/cover (legal-effect caveat)	METHOD	A competitor being silent on abuse does NOT confirm cover — deliberate/criminal-acts and other general exclusions may still bite. Flagged for legal confirmation rather than asserted as a competitor win.
Tysers worldwide PI + patents	CONFIRMED	Tysers PI/E&O is worldwide and includes patent infringement; TMHCC S12 is jurisdiction-limited (default ex-US/Canada) and excludes patents.
Statutory / criminal defence costs	CONFIRMED	Tysers funds Bribery/Corporate-Manslaughter/H&S/CDM defence (GBP 1m); Yutree funds criminal-prosecution defence (GBP 250k). TMHCC S12 funds only data-protection defence (broader criminal cover sits in S13/S14).
AXA XL absolute exclusions	CONFIRMED	AXA XL excludes terrorism AND punitive/exemplary damages and fines ABSOLUTELY, and carries a broad communicable-disease and cyber exclusion — evidencing that disciplined restrictions are market-normal and supporting TMHCC's defensible restrictions.
Personal Accident gap	CONFIRMED	Tysers (extensive) and Yutree (assault) provide Personal Accident; TMHCC, Liberty, Allianz, AXA XL and Entertainment Elite do not.

Overall verdict

TMHCC remains the broadest wording in the peer group by section count and is the only wording offering Loss of Licence, Commercial Legal Expenses, Management Liability and a genuine standalone Cyber-liability section. Its genuine **NARROWER** points are: (1) the abuse exclusion (vs Tysers/Liberty/Allianz/EE which are silent); (2) jurisdiction (default ex-US/Canada vs Tysers' worldwide PI); (3) patents (excluded vs Tysers); (4) no Personal Accident section; and (5) S12-only criminal/regulatory defence is narrower on a section-by-section read. Each is addressed in the Phase 05 gap-fill strategy. TMHCC should NOT be described as market-leading on any row the wording does not support — e.g. abuse.